

COMMITTEE ON JUDICIARY AND ELECTIONS  
SENATE AMENDMENTS TO S.B. 1413  
(Reference to printed bill)

1 Strike everything after the enacting clause and insert:

2 "Section 1. Section 28-672, Arizona Revised Statutes, is amended to  
3 read:

4 28-672. Causing serious physical injury or death by a moving  
5 violation; time limitation; penalties; violation;  
6 classification; definition

7 A. A person is guilty of causing serious physical injury or death  
8 by a moving violation if the person violates any one of the following and  
9 the violation results in an accident causing serious physical injury or  
10 death to another person:

- 11 1. Section 28-645, subsection A, paragraph 3, subdivision (a).
- 12 2. Section 28-710.
- 13 3. Section 28-729.
- 14 4. Section 28-771.
- 15 5. Section 28-772.
- 16 6. Section 28-773.
- 17 7. Section 28-792.
- 18 8. Section 28-794.
- 19 9. Section 28-797, subsection F, G, H or I.
- 20 10. Section 28-855, subsection B.
- 21 11. Section 28-857, subsection A.
- 22 12. Section 28-914.

23 B. A person who violates this section shall attend and successfully  
24 complete traffic survival school educational sessions that are designed to  
25 improve the safety and habits of drivers and that are approved by the  
26 department. In addition, the court may order the person to perform  
27 community restitution.

28 C. The court shall report a conviction for a violation of this  
29 section to the department and:

30 1. For a first violation of this section, shall direct the  
31 department to suspend the person's driving privilege or restrict the  
32 person's driving privilege as described in section 28-144 for at least  
33 ninety days and not more than one hundred eighty days if the violation  
34 results in serious physical injury and at least one hundred eighty days  
35 and not more than one year if the violation results in death.

36 2. For a second or subsequent violation of this section within a  
37 period of thirty-six months, shall direct the department to suspend the  
38 person's driving privilege for one hundred eighty days if the violation  
39 results in serious physical injury and one year if the violation results  
40 in death.

1 D. If a person's driving privilege is suspended pursuant to any  
2 other statute because of an incident involving a violation of this  
3 section, the suspension period prescribed in subsection C of this section  
4 shall run consecutively with the other suspension period.

5 E. If a person fails to successfully complete traffic survival  
6 school educational sessions or perform community restitution pursuant to  
7 this section, the court shall notify the department and the department  
8 shall promptly suspend the driver license or permit of the driver or the  
9 privilege of a nonresident to drive a motor vehicle in this state until  
10 the order is satisfied.

11 F. If the person who suffers serious physical injury as a result of  
12 a violation of this section appears before the court in which the action  
13 is pending at any time before trial and acknowledges receipt of  
14 satisfaction for the injury, on payment of the costs incurred, the court  
15 shall order that the prosecution be dismissed and the defendant be  
16 discharged. The reasons for the order shall be set forth and entered of  
17 record, and the order shall be a bar to another prosecution for the same  
18 offense.

19 ~~G. Restitution awarded pursuant to section 13-603 as a result of a~~  
20 ~~violation of this section shall not exceed \$100,000.~~

21 ~~H.~~ G. A prosecution for a violation of this section must be  
22 commenced within two years after actual discovery of the offense by the  
23 state or the political subdivision having jurisdiction or discovery by the  
24 state or the political subdivision that should have occurred with the  
25 exercise of reasonable diligence, whichever first occurs.

26 ~~I.~~ H. A person who violates this section is guilty of a class 1  
27 misdemeanor.

28 ~~J.~~ I. For the purposes of this section, "serious physical injury"  
29 has the same meaning prescribed in section 13-105."

30 Amend title to conform

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C: JR  
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